

SENATE No. 640**The Commonwealth of Massachusetts**

PRESENTED BY:

Mark C. Montigny

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act promoting humane cosmetics and other household products by limiting the use of animal testing.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Mark C. Montigny</i>	<i>Second Bristol and Plymouth</i>	
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>1/29/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>2/2/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>2/3/2025</i>
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>2/5/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/7/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/10/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>2/14/2025</i>
<i>Adam Gómez</i>	<i>Hampden</i>	<i>2/20/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/26/2025</i>
<i>Paul W. Mark</i>	<i>Berkshire, Hampden, Franklin and Hampshire</i>	<i>2/27/2025</i>
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>3/4/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>3/10/2025</i>
<i>Lydia Edwards</i>	<i>Third Suffolk</i>	<i>3/13/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>3/19/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>4/3/2025</i>

<i>John J. Cronin</i>	<i>Worcester and Middlesex</i>	<i>4/24/2025</i>
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>	<i>4/28/2025</i>
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	<i>4/29/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>5/14/2025</i>
<i>William J. Driscoll, Jr.</i>	<i>Norfolk, Plymouth and Bristol</i>	<i>6/5/2025</i>
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	<i>7/9/2025</i>
<i>Angelo J. Puppolo, Jr.</i>	<i>12th Hampden</i>	<i>10/23/2025</i>

SENATE No. 640

By Mr. Montigny, a petition (accompanied by bill, Senate, No. 640) of Mark C. Montigny, John F. Keenan, Joanne M. Comerford, Michael O. Moore and other members of the General Court for legislation to promote humane cosmetics and other household products by limiting the use of animal testing. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1424 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act promoting humane cosmetics and other household products by limiting the use of animal testing.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 140 of the General Laws is hereby amended by inserting after

2 Section 174H the following new section:-

3 Section 174I.

4 (a) As used in this section, the following words shall have the following meanings unless
5 the context clearly requires otherwise:

6 "Alternative test method", a process or procedure implemented to obtain information
7 regarding the biological effects of exposure to a chemical or agent that does not employ the use
8 of an animal and results in the gathering of valid information that would otherwise be acquired

through the use of a traditional animal test method, including, but not limited to, computational toxicology, bioinformatics, high-throughput screening methods, chemical substances testing, tiered testing methods, in vitro studies, and systems biology.

“Commissioner”, the commissioner of the department of public health.

"Contract testing facility", a partnership, corporation, association, or other legal relationship that tests chemicals, ingredients, product formulations, or products.

"Manufacturer", a partnership, corporation, association, or other legal relationship that produces products, product formulations, chemicals, or ingredients.

"Medical research", investigations, experiments, and studies to discover, develop, or verify knowledge relating to the causes, diagnosis, treatment, prevention, or control of physical or mental diseases and impairments of humans and animals or relating to the development of biomedical products, devices, or pharmaceuticals.

"Traditional animal test method", a process or procedure using animals to obtain information regarding the biological effects of exposure to a chemical or agent.

(b) (1) When testing a product, product formulation, chemical, or ingredient in the Commonwealth, no manufacturer or contract testing facility shall use a traditional animal test method for which a valid alternative test method exists. No provision of this subsection shall be construed to apply to a test method conducted for the purposes of medical research.

(c) The commissioner shall promulgate regulations to implement, enforce, and administer this section and shall establish standards for alternative test methods to ensure safety and comparable validity of results to traditional animal test methods. The commissioner shall

30 consider the Organization for Economic Co-Operation and Development's Guidelines for the
31 Testing of Chemicals when establishing said standards.

32 SECTION 2. The commissioner of public health shall promulgate regulations to
33 implement this act no later than 180 days following passage of this act.

34 SECTION 3. Section 1 shall take effect 6 months after the passage of this act and section
35 2 shall take effect upon passage.